Clerk of the Superior Court
*** Electronically Filed ***
M. De La Cruz, Deputy
6/10/2022 6:33:41 PM
Filing ID 14423850

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IN THE SUPERIOR COURT OF THE STATE OF ARIZONA

IN AND FOR THE COUNTY OF MARICOPA

John CD Doe, a single man, Plaintiff, vs. Big Brothers Big Sisters of America, a District of Columbia, non-profit corporation; Big Brothers Big Sisters of Central Arizona, an Arizona corporation; John Doe 1-100; Jane Doe 1-100; and Black & White Corporations 1-100, Defendants.	Case No. CV2020-014920 **DEFENDANT BIG BROTHERS BIG SISTERS OF AMERICA'S ANSWER TO PLAINTIFF'S FIRST AMENDED COMPLAINT** (Assigned to the Honorable Bradley Astrowsky)

Defendant Big Brothers Big Sisters of America ("BBBS America"), for its Answer to Plaintiff's Complaint, admits, denies and affirmatively alleges as follows:

JURISDICTION

1. Defendant is without sufficient knowledge or information to admit or deny the allegations contained in Paragraph 1 of the Complaint and therefore denies them and demands strict proof thereof.

2. Responding to the allegations contained in Paragraph 2 of the Complaint, Defendant admits it is a nonprofit corporation registered in the District of Columbia and that it was formed pursuant to PL85-870, 85th Congress, S. 3728 (September 2, 1958), as amended

by PL 95-167, 95th Congress S. 2208 (November 11, 1977) when Big Sisters International and Big Brothers of America merged, forming Big Brothers Big Sisters of America. *See* **Exhibits 1 and 2**, respectively, attached hereto. Defendant further admits its principal place of business is located at 2502 North Rocky Point Dr. Suite 550, Tampa, FL and that Defendant is currently registered as a foreign charitable corporation with the Arizona Corporation Commission as of 2015. Defendant denies the remaining allegations contained in Paragraph 2 of the Complaint.

3. Defendant denies the allegations contained in Paragraph 3 of the Complaint. Defendant affirmatively alleges that Big Brothers Big Sisters of America was incorporated for the purpose set forth in PL85-870, 85th Congress, S. 3728 (September 2, 1958), as amended by PL 95-167, 95th Congress S. 2208 (November 11, 1977). *See* **Exhibits 1 and 2**, attached hereto.

4. Defendant denies the allegations contained in Paragraph 4 of the Complaint.

5. Responding to the allegations contained in Paragraph 5 of the Complaint, Defendant admits that Defendant Big Brothers Big Sisters of Central Arizona is an Arizona nonprofit corporation that has its principal place of business in Maricopa County, Arizona. BBBS America is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 5 of the Complaint and, therefore, denies same and demands strict proof thereof.

6. Defendant BBBS America is without sufficient knowledge or information to admit or deny the allegations contained in Paragraph 6 of the Complaint and, therefore, denies same and demands strict proof thereof.

7. Defendant BBBS America is without sufficient knowledge or information to admit or deny the allegations contained in Paragraph 7 of the Complaint and, therefore, denies same and demands strict proof thereof.

8. Defendant denies the allegations made against it in Paragraph 8 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 8 of the Complaint and, therefore, denies same

and demands strict proof thereof.

9. Defendant denies the allegations made against it in Paragraph 9 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 9 of the Complaint and, therefore, denies same and demands strict proof thereof.

10. Defendant denies the allegations made against it in Paragraph 10 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 10 of the Complaint and, therefore, denies same and demands strict proof thereof.

11. Defendant BBBS America is without sufficient knowledge or information to admit or deny the allegations contained in Paragraph 11 of the Complaint and, therefore, denies same and demands strict proof thereof.

12. Defendant denies the allegations made against it in Paragraph 12 of the Complaint, specifically including the allegation that it had any role in assigning, placing, pairing, partnering, introducing and/or matching Italo Arbulu with Plaintiff. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 15 of the Complaint and, therefore, denies same and demands strict proof thereof.

13. Defendant denies the allegations made against it in Paragraph 13 of the Complaint, specifically including the allegation that Italo Arbulu ever acted within the course and scope of any employment or agency with Defendant, or acted with actual or apparent authority of Defendant. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 13 of the Complaint and, therefore, denies same and demands strict proof thereof.

14. Defendant denies the allegations made against it in Paragraph 14 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 14 of the Complaint and, therefore, denies same and demands strict proof thereof.

15. Defendant denies the allegations made against it in Paragraph 15 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 15 of the Complaint and, therefore, denies same and demands strict proof thereof.

16. Defendant denies the allegations contained in Paragraph 16 of the Complaint.

17. Defendant denies the allegations made against it in Paragraph 17 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 17 of the Complaint and, therefore, denies same and demands strict proof thereof.

18. Defendant denies the allegations made against it in Paragraph 18 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 18 of the Complaint and, therefore, denies same and demands strict proof thereof.

GENERAL ALLEGATIONS

19. Defendant incorporates its answers to all other Paragraphs of the Complaint as if fully set forth herein.

20. Responding to Paragraph 20 of the Complaint, Defendant admits that on or before 1977, Big Brothers of America issued a memorandum which referenced a National Clearinghouse for Information on Sexual Child Abuse, attached hereto as **Exhibit 3**, and a memorandum addressing the issue of child molestation, attached hereto as **Exhibit 4**. Defendant affirmatively alleges that **Exhibits 3 and 4** speak for themselves. Defendant denies all remaining allegations contained in Paragraph 20 of the Complaint.

21. Responding to Paragraph 21 of the Complaint, Defendant admits that a national program of insurance existed for Big Brothers/Big Sisters agencies. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 21 of the Complaint and, therefore, denies same and demands strict proof thereof.

22. Responding to Paragraph 22 of the Complaint, Defendant admits that in approximately 1982, Donald L. Wolff authored a document entitled "Child Sexual Abuse," known as the "Wolff Report," which Defendant provided to affiliate members. A copy of the Wolff Report is attached hereto as **Exhibit 5** and speaks for itself. Defendant denies all allegations of Paragraph 25 inconsistent with the Wolff Report. Defendant is without sufficient information to admit or deny the remaining allegations contained in Paragraph 22 of the Complaint and, therefore, denies same and demands strict proof thereof.

23. Responding to Paragraph 23 of the Complaint, Defendant admits that the Young Lawyers Division of the American Bar Association Center on Children and the Law published an article titled "Analysis of Molestation Allegation Reports" dated December 1991 (the "Young Lawyers Report"). Defendant affirmatively alleges that the Young Lawyers Report speaks for itself. Defendant is without sufficient information to admit or deny the remaining allegations contained in Paragraph 23 of the Complaint and, therefore, denies same and demands strict proof thereof.

24. Responding to Paragraph 24, of the Complaint, Defendant admits that it makes training available to its affiliates and that at the time pertinent to the allegations in this case, it had a membership affiliate agreement ("MAA") with Valley Big Brothers, wherein, among other things, Valley Big Brothers agreed to maintain membership standards developed by the affiliate network in the form then in effect. BBBS America asserts that the membership affiliation agreement, attached hereto as **Exhibit 6**, speaks for itself and denies the allegations of Paragraph 24 of the Complaint inconsistent therewith. Defendant denies the remaining allegations of Paragraph 24 of the Complaint.

25. Responding to Paragraph 25 of the Complaint, Defendant admits that in accepting affiliation with BBBS America in 1981, Valley Big Brothers agreed to the terms of its MAA, attached hereto as **Exhibit 6**. Defendant affirmatively alleges **Exhibit 6** speaks for itself and denies the allegations contained in Paragraph 25 inconsistent therewith. Defendant BBBS America is without sufficient knowledge or information to admit or deny

the remaining allegations of Paragraph 25 of the Complaint, which are vague as to time, and therefore denies same and demands strict proof thereof.

26. Responding to Paragraph 26 of the Complaint, Defendant BBBS America alleges that at the times relevant to the alleged events in the Complaint, the terms and conditions of Valley Big Brothers' affiliation with Big Brothers of America were contained in the MAA attached hereto as **Exhibit 6**. Defendant BBBS America alleges that the applicable MAA speaks for itself and denies all allegations of Paragraph 26 inconsistent therewith. Defendant BBBS America further denies that the language in Paragraph 26 of the Complaint is contained in the applicable MAA.

27. Defendant denies the allegations contained in Paragraph 27 of the Complaint.

28. Responding to Paragraph 28 of the Complaint, Defendant admits that at the times relevant to the allegations contained in the Complaint, Big Brothers of America had developed certain training programs that were implemented to some of its member affiliates. Defendant denies the remaining allegations contained in Paragraph 28 of the Complaint.

29. Responding to Paragraph 29 of the Complaint, Defendant admits that in the time period relevant to the allegations of the Complaint, Big Brothers of America, together with affiliated agencies and organizations, established standards for screening volunteers. Defendant denies the remaining allegations contained in Paragraph 29 of the Complaint.

30. Defendant denies the allegations made against it in Paragraph 30 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 30 of the Complaint and, therefore, denies same and demands strict proof thereof.

31. Responding to Paragraph 31 of the Complaint, Defendant denies the allegation that the program in which Plaintiff was allegedly enrolled was Defendant's program. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 31 of the Complaint and, therefore, denies same and demands strict proof thereof.

32. Responding to Paragraph 32 of the Complaint, Defendant denies the allegation that the program in which Plaintiff was allegedly enrolled was Defendant's program. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 32 of the Complaint and, therefore, denies same and demands strict proof thereof.

33. Responding to Paragraph 33 of the Complaint, Defendant denies the allegations made against it. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 33 of the Complaint and, therefore, denies same and demands strict proof thereof.

34. Responding to Paragraph 34 of the Complaint, Defendant denies the allegations made against it. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 34 of the Complaint and, therefore, denies same and demands strict proof thereof.

35. Responding to Paragraph 35 of the Complaint, Defendant denies the allegations made against it. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 35 of the Complaint and, therefore, denies same and demands strict proof thereof.

36. Responding to Paragraph 36 of the Complaint, Defendant denies the allegations made against it. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 36 of the Complaint and, therefore, denies same and demands strict proof thereof.

37. Defendant is without sufficient knowledge or information to admit or deny the allegations contained in Paragraph 37 of the Complaint and, therefore, denies same and demands strict proof thereof.

38. Responding to Paragraph 38 of the Complaint, Defendant denies the allegations made against it. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 38 of the Complaint and, therefore, denies same and demands strict proof thereof.

COUNT I
SEXUAL ASSAULT / SEXUAL ABUSE / SEXUAL CONDUCT WITH A MINOR
(A.R.S. § 13-1405 and the common law)

39. Responding to Paragraph 39 of the Complaint, Defendant incorporates its responses to all other paragraphs of its Answer as if fully set forth herein.

40. Defendant is without sufficient knowledge or information to admit or deny the allegations contained in Paragraph 40 of the Complaint and, therefore, denies same and demands strict proof thereof.

41. Defendant is without sufficient knowledge or information to admit or deny the allegations contained in Paragraph 41 of the Complaint and, therefore, denies same and demands strict proof thereof.

42. Defendant denies the allegations made against it in Paragraph 42 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 42 of the Complaint and, therefore, denies same and demands strict proof thereof.

43. Defendant denies the allegations made against it in Paragraph 43 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 43 of the Complaint and, therefore, denies same and demands strict proof thereof.

44. Defendant denies the allegations made against it in Paragraph 44 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 44 of the Complaint and, therefore, denies same and demands strict proof thereof.

45. Responding to Paragraph 45 of the Complaint, Defendant denies that BBBS America committed any wrongful acts or that it was the direct or proximate cause of any injury alleged by Plaintiff. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 45 of the Complaint and, therefore, denies same and demands strict proof thereof.

46. The allegations contained in Paragraph 46 of the Complaint are legal conclusions to which no response is required. In an abundance of caution and for avoidance of doubt in the event a response is deemed necessary, Defendant denies the allegations contained in Paragraph 46.

COUNT II
NEGLIGENCE AGAINST DEFENDANTS BIG BROTHERS BIG SISTERS OF AMERICA & BIG BROTHERS BIG SISTERS OF CENTRAL ARIZONA

47. Responding to Paragraph 47 of the Complaint, Defendant incorporates its responses to all other paragraphs of its Answer as if fully set forth herein.

48. Responding to Paragraph 48 of the Complaint, Defendant denies that it owed any duty to Plaintiff. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 48 of the Complaint and, therefore, denies same and demands strict proof thereof.

49. Responding to Paragraph 49 of the Complaint, Defendant denies that it owed a duty to Plaintiff and denies that it had a special relationship with Plaintiff. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 49 of the Complaint and, therefore, denies same and demands strict proof thereof. Defendant affirmatively alleges that it had no relationship whatsoever with Plaintiff.

50. Responding to Paragraph 50 of the Complaint, Defendant denies that it owed any duty to Plaintiff and denies that it had a special relationship with Plaintiff, Plaintiff's parents and/or other parents. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 50 of the Complaint and, therefore, denies same and demands strict proof thereof.

51. Responding to Paragraph 51 of the Complaint, Defendant denies that it owed any duty to Plaintiff and denies that it had a special relationship with Italo Arbulu. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 51 of the Complaint and, therefore, denies same and demands strict proof thereof. Defendant affirmatively alleges that it had no relationship whatsoever with Italo Arbulu.

52. Defendant denies the allegations made against it in Paragraph 52 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 52 of the Complaint and, therefore, denies same and demands strict proof thereof.

53. Defendant denies the allegations made against it in Paragraph 53 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 53 of the Complaint and, therefore, denies same and demands strict proof thereof.

54. Defendant denies the allegations made against it in Paragraph 54 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 54 of the Complaint and, therefore, denies same and demands strict proof thereof.

55. Defendant denies the allegations made against it in Paragraph 55 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 55 of the Complaint and, therefore, denies same and demands strict proof thereof.

56. Defendant denies the allegations made against it in Paragraph 56 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 56 of the Complaint and, therefore, denies same and demands strict proof thereof.

57. Defendant denies the allegations made against it in Paragraph 57 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 57 of the Complaint and, therefore, denies same and demands strict proof thereof.

58. Defendant denies the allegations made against it in Paragraph 58 of the Complaint, including all of its subparagraphs. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 58 of the

Complaint including all of its subparagraphs and, therefore, denies same and demands strict proof thereof.

59. Defendant denies the allegations made against it in Paragraph 59 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 59 of the Complaint and, therefore, denies same and demands strict proof thereof.

60. Defendant denies the allegations made against it in Paragraph 60 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 60 of the Complaint and, therefore, denies same and demands strict proof thereof.

61. Defendant denies the allegations made against it in Paragraph 61 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 61 of the Complaint and, therefore, denies same and demands strict proof thereof.

62. Defendant denies the allegations made against it in Paragraph 62 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 62 of the Complaint and, therefore, denies same and demands strict proof thereof.

63. Defendant denies the allegations made against it in Paragraph 63 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 63 of the Complaint and, therefore, denies same and demands strict proof thereof.

64. Defendant denies the allegations made against it in Paragraph 64 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 64 of the Complaint and, therefore, denies same and demands strict proof thereof.

65. Defendant denies the allegations made against it in Paragraph 65 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the

remaining allegations contained in Paragraph 65 of the Complaint and, therefore, denies same and demands strict proof thereof.

66. Defendant denies the allegations made against it in Paragraph 66 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 66 of the Complaint and, therefore, denies same and demands strict proof thereof.

67. Defendant denies the allegations made against it in Paragraph 67 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 67 of the Complaint and, therefore, denies same and demands strict proof thereof.

68. Defendant denies the allegations made against it in Paragraph 68 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 68 of the Complaint and, therefore, denies same and demands strict proof thereof.

69. Defendant denies the allegations made against it in Paragraph 69 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 69 of the Complaint and, therefore, denies same and demands strict proof thereof.

70. Defendant denies the allegations made against it in Paragraph 70 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 70 of the Complaint and, therefore, denies same and demands strict proof thereof.

COUNT III
NEGLIGENT TRAINING AND SUPERVISION OF EMPLOYEES AGAINST DEFENDANTS BIG BROTHERS BIG SISTERS OF AMERICA & BIG BROTHERS BIG SISTERS OF CENTRAL ARIZONA

71. Responding to Paragraph 71 of the Complaint, Defendant incorporates its responses to all other paragraphs of its Answer as if fully set forth herein.

72. Defendant denies the allegations made against it in Paragraph 72 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 72 of the Complaint and, therefore, denies same and demands strict proof thereof.

73. Defendant denies the allegations made against it in Paragraph 73 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 73 of the Complaint and, therefore, denies them. Defendant affirmatively alleges that it never had an employment or agency relationship with Italo Arbulu.

74. Defendant denies the allegations made against it in Paragraph 74 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 74 of the Complaint and, therefore, denies same and demands strict proof thereof. Defendant affirmatively alleges that it owed no duty to Plaintiff.

75. Defendant denies the allegations made against it in Paragraph 75 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 75 of the Complaint and, therefore, denies same and demands strict proof thereof. Defendant affirmatively alleges that it owed no duty to Plaintiff.

76. Defendant denies the allegations made against it in Paragraph 76 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 76 of the Complaint and, therefore, denies same and demands strict proof thereof. Defendant affirmatively alleges that it owed no duty to Plaintiff.

77. Defendant denies the allegations made against it in Paragraph 77 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 77 of the Complaint and, therefore, denies same and demands strict proof thereof.

78. Defendant denies the allegations made against it in Paragraph 78 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 78 of the Complaint and, therefore, denies same and demands strict proof thereof.

COUNT IV
NEGLIGENT RETENTION OF EMPLOYEES / AGENTS
AGAINST DEFENDANTS BIG BROTHERS BIG SISTERS OF AMERICA
& BIG BROTHERS BIG SISTERS OF CENTRAL ARIZONA

79. Responding to Paragraph 79 of the Complaint, Defendant incorporates its responses to all other paragraphs of its Answer as if fully set forth herein.

80. Defendant denies the allegations made against it in Paragraph 80 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 80 of the Complaint and, therefore, denies same and demands strict proof thereof. Defendant affirmatively alleges that it did not ever employ, supervise, authorize or control Italo Arbulu and had no duty to do so.

81. Defendant denies the allegations made against it in Paragraph 81 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 81 of the Complaint and, therefore, denies same and demands strict proof thereof.

82. Defendant denies the allegations made against it in Paragraph 82 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 82 of the Complaint and, therefore, denies same and demands strict proof thereof.

83. Defendant denies the allegations made against it in Paragraph 83 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 83 of the Complaint and, therefore, denies same and demands strict proof thereof.

84. Responding to Paragraph 84 of the Complaint, Defendant denies that BBBS America committed any wrongful acts or that it was the direct or proximate cause of any injury alleged by Plaintiff. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 84 of the Complaint and, therefore, denies same and demands strict proof thereof.

COUNT V
BREACH OF FIDUCIARY DUTY
(All Defendants)

85. Responding to Paragraph 85 of the Complaint, Defendant incorporates its responses to all other paragraphs of its Answer as if fully set forth herein.

86. Defendant denies the allegations made against it in Paragraph 86 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 86 of the Complaint and, therefore, denies same and demands strict proof thereof. Defendant affirmatively alleges that it did not have a special relationship with Plaintiff, and was not and never has been Plaintiff's friend, mentor, guide, protector or fiduciary.

87. Defendant denies the allegations made against it in Paragraph 87 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 87 of the Complaint and, therefore, denies same and demands strict proof thereof.

88. Responding to Paragraph 88 of the Complaint, Defendant denies that BBBS America committed any breach of fiduciary duty or that it was the direct or proximate cause of any injury alleged by Plaintiff. Defendant denies the allegations made against it in Paragraph 88 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 88 of the Complaint and, therefore, denies same and demands strict proof thereof.

COUNT VI
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
(All Defendants)

89. Responding to Paragraph 89 of the Complaint, Defendant incorporates its responses to all other paragraphs of its Answer as if fully set forth herein.

90. Defendant denies the allegations made against it in Paragraph 90 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 90 of the Complaint and, therefore, denies same and demands strict proof thereof.

91. Responding to Paragraph 91 of the Complaint, Defendant denies that BBBS America committed any wrongful acts or that it was the direct or proximate cause of any injury alleged by Plaintiff. Defendant denies the allegations made against it in Paragraph 91 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 91 of the Complaint and, therefore, denies same and demands strict proof thereof.

COUNT VII
ENDANGERMENT
(All Defendants)

92. Responding to Paragraph 92 of the Complaint, Defendant incorporates its responses to all other paragraphs of its Answer as if fully set forth herein.

93. Defendant denies the allegations made against it in Paragraph 93 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 93 of the Complaint and, therefore, denies same and demands strict proof thereof.

94. Defendant denies the allegations made against it in Paragraph 94 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 94 of the Complaint and, therefore, denies same and demands strict proof thereof.

95. Defendant denies the allegations made against it in Paragraph 95 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 95 of the Complaint and, therefore, denies same and demands strict proof thereof.

96. Defendant denies the allegations made against it in Paragraph 96 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 96 of the Complaint and, therefore, denies same and demands strict proof thereof.

97. Defendant denies the allegations made against it in Paragraph 97 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 97 of the Complaint and, therefore, denies same and demands strict proof thereof.

98. Defendant denies the allegations made against it in Paragraph 98 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 98 of the Complaint and, therefore, denies same and demands strict proof thereof.

COUNT VIII
CHILD ABUSE
(A.R.S. § 13-3623 and the common law)
(All Defendants)

99. Responding to Paragraph 99 of the Complaint, Defendant incorporates its responses to all other paragraphs of its Answer as if fully set forth herein.

100. Defendant denies the allegations made against it in Paragraph 100 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 100 of the Complaint and, therefore, denies same and demands strict proof thereof.

101. Defendant denies the allegations made against it in Paragraph 101 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 101 of the Complaint and, therefore, denies same and demands strict proof thereof.

102. Defendant denies the allegations made against it in Paragraph 102 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 102 of the Complaint and, therefore, denies same and demands strict proof thereof.

103. Defendant denies the allegations made against it in Paragraph 103 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the

remaining allegations contained in Paragraph 103 of the Complaint and, therefore, denies same and demands strict proof thereof.

104. Defendant denies the allegations made against it in Paragraph 104 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 104 of the Complaint and, therefore, denies same and demands strict proof thereof.

105. Defendant denies the allegations made against it in Paragraph 105 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 105 of the Complaint and, therefore, denies same and demands strict proof thereof.

COUNT IX
ASSAULT
(A.R.S. §§ 13-1204, 13-1203, and the common law)
(All Defendants)

106. Responding to Paragraph 106 of the Complaint, Defendant incorporates its responses to all other paragraphs of its Answer as if fully set forth herein.

107. Defendant is without sufficient knowledge or information to admit or deny the allegations contained in Paragraph 107 of the Complaint and, therefore, denies same and demands strict proof thereof.

108. Defendant denies the allegations made against it in Paragraph 108 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 108 of the Complaint and, therefore, denies same and demands strict proof thereof.

109. Defendant denies the allegations made against it in Paragraph 109 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 109 of the Complaint and, therefore, denies same and demands strict proof thereof.

110. Defendant denies the allegations made against it in Paragraph 110 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 110 of the Complaint and, therefore, denies same and demands strict proof thereof.

111. The allegations contained in Paragraph 111 of the Complaint are legal conclusions to which no response is required. In an abundance of caution and for avoidance of doubt in the event a response to Paragraph 111 is deemed necessary, Defendant denies the allegations.

112. Responding to Paragraph 112 of the Complaint, Defendant denies that BBBS America abused Plaintiff or that it was the direct or proximate cause of any injury alleged by Plaintiff. Defendant denies the allegations made against it in Paragraph 112 of the Complaint. Defendant is without sufficient knowledge or information to admit or deny the remaining allegations contained in Paragraph 112 of the Complaint and, therefore, denies same and demands strict proof thereof.

PRAYER FOR RELIEF

1. Defendant denies the allegations of the Complaint set forth in the Prayer for Relief. Specifically,

a. Defendant denies that Plaintiff is entitled to the relief set forth in Paragraph 1(a) of the Complaint's Prayer for Relief and demands strict proof thereof.;

b. Defendant denies that Plaintiff is entitled to the relief set forth in Paragraph 1(b) of the Complaint's Prayer for Relief and demands strict proof thereof;

c. Defendant denies that Plaintiff is entitled to the relief set forth in Paragraph 1(c) of the Complaint's Prayer for Relief and demands strict proof thereof;

d. Defendant denies that Plaintiff is entitled to the relief set forth in Paragraph 1(d) of the Complaint's Prayer for Relief and demands strict proof thereof.

e. Defendant denies that Plaintiff is entitled to the relief set forth in Paragraph 1(e) of the Complaint's Prayer for Relief, which relief is prohibited by the

applicability provisions of A.R.S. § 12-514 set forth in H.B. 2466, Sec. 3 (May 27, 2019);

f. Defendant denies that Plaintiff is entitled to any relief requested in Paragraph 1(f) of the Complaint's Prayer for Relief and demands strict proof thereof.

AFFIRMATIVE DEFENSES

For its affirmative defenses to Plaintiff's Complaint, Defendant alleges as follows, individually and in the alternative:

1. Each and every allegation of the Complaint not expressly admitted herein is denied.

2. The Complaint, and each cause of action alleged therein, fails to state a claim for which relief can be granted.

3. Defendant asserts that Plaintiff's alleged injuries and damages, if any, were directly and proximately caused or contributed to by the negligence of third parties who were responsible for Plaintiff's care and supervision, including but not limited to his mother, or others who had a legal duty or responsibility for the care and/or custody of Plaintiff (the "Responsible Custodians").

4. Defendant asserts that Plaintiff's alleged injuries and damages, if any, were directly and proximately caused by non-parties at fault, including but not limited to Plaintiff's alleged perpetrator, Italo Arbulu, who was not an agent of and was not acting within the scope of any employment with or actual or apparent authority on behalf of Defendant or any of its affiliates.

5. Plaintiff and/or other parties or non-parties to this lawsuit caused and/or contributed to each of Plaintiff's alleged injuries, damages, losses and costs, thereby requiring the application of principles of comparative fault.

6. The doctrine of *respondeat superior* does not apply to the alleged conduct of Italo Arbulu, because Defendant had no relationship with him and it cannot be held vicariously liable for sexual abuse, sexual conduct or other for torts as alleged in Plaintiff's

Complaint. To the extent any such alleged conduct occurred, it was the act of an individual who was acting solely for personal motives unrelated to the furtherance of the business of Defendant or its affiliate members.

7. Plaintiff's claims are barred, in whole or in part, by waiver, laches, and/or estoppel. Plaintiff unreasonably delayed in providing notice and in commencing and prosecuting this action which caused unfair prejudice to Defendant, thus barring any recovery against BBBS America under the equitable doctrine of laches.

Plaintiff's failure to assert claims against Defendant before the expiration of the statute of limitations is inconsistent with his assertion of the claims in his Complaint. Defendant relied on the absence of claims by the expiration of the statute of limitations in conducting its business. Defendant has suffered prejudice as a result of Plaintiff's unreasonable delay in bringing claims that were waived or had expired decades ago.

8. Plaintiff's claims are barred, in whole or in part, by the statute of limitations.

9. Plaintiff's claims are barred in whole or in part to the extent that Plaintiff or any parent, guardian or other authorized agent on his behalf waived or released liability.

10. Any recovery on Plaintiff's Complaint or cause of action alleged therein, is barred in whole or in part by Plaintiff's failure to mitigate his damages, if any. In the alternative, to the extent Plaintiff has mitigated his damages, any recovery on his Complaint, or any cause of action alleged therein, is barred in whole or in part by such mitigation of damages.

11. Defendant affirmatively alleges that it complied with all legal and industry standards applicable at the time of the events alleged in Plaintiff's Complaint.

12. Defendant contends that the sole and /or proximate cause of the damages claimed by Plaintiff was and is due to the willful and intentional acts of persons or entities other than Defendant.

14. Plaintiff's claims are barred, in whole or in part, by the statute of limitations.

15. Plaintiff's claims are barred, in whole or in part, by A.R.S. § 12-514 or its applicability and definition provisions set forth in H.B. 2466 (May 27, 2019).

16. Plaintiff must prove each and every element of every one of his claims by clear and convincing evidence pursuant to A.R.S. § 12-514 and its applicability and definitions provisions, H.B. 2466 (May 27, 2019).

17. Plaintiff's claims for punitive damages are barred in their entirety by A.R.S. § 12-514 and its applicability and definitions provisions, H.B. 2466 (May 27, 2019).

18. Plaintiff's claims are barred, in whole or in part, by A.R.S. § 12-505.

19. Defendant did not authorize, consent to, ratify, direct or participate in any of the allegedly wrongful or negligent conduct that forms the basis of Plaintiff's Complaint. Defendant was not responsible for supervising and thus did not supervise any employees or volunteers of BBBS of Southern Arizona or any other affiliate member. Defendant also was not responsible for training and thus did not supervise the training of any affiliate volunteers. Italo Arbulu was not a volunteer, employee or agent of BBBS America.

20. Defendant did not know or otherwise have actual notice of any misconduct that create an unreasonable risk of sexual conduct (as defined in applicability provision to A.R.S. § 12-514) or sexual contact (as defined in applicability provision to A.R.S. § 12-514) with a minor by any employee, volunteer, representative or agent.

21. Italo Arbulu was never, at any time, an employee, volunteer, representative or agent of Defendant.

22. Defendant BBBS America does not presently know all facts relating to the allegations of Plaintiff's Complaint or Defendants' respective defenses. Defendant BBBS America therefore reserves its right to amend this Answer to allege additional affirmative defenses should it later discover or identify facts supporting such defenses.

WHEREFORE, having fully answered Plaintiff's Complaint, Defendant prays as follows:

a. That Plaintiff's Complaint be dismissed in its entirety, with prejudice, and that Plaintiffs take nothing thereby; and

b. For such other relief as this Court deems just and proper.

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DATED this 10th day of June, 2022.

BERKE LAW FIRM, PLLC

By */s/ Stacey F. Gottlieb*
Lori V. Berke
Stacey F. Gottlieb
Attorneys for Defendant
Big Brothers Big Sisters of America

The foregoing document was e-filed with the Clerk of Court this 10th day of June, 2022, and a copy e-served via AZTurboCourt to:

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